



POLICE DEPARTMENT

September 23, 2014

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Richard Johnson
Tax Registry No. 921444
Narcotics Borough Bronx
Disciplinary Case No. 2013-9947

The above-named member of the Department appeared before me on April 25, 2014, charged with the following:

1. Said Sergeant Richard Johnson, assigned to Narcotics Borough Bronx, while on duty on or about February 29, 2012, at approximately 1325 hours, in the vicinity of Bedford Park Boulevard and Valentine Avenue, in Bronx County, abused his authority as a member of the New York City Police Department in that he stopped Emille Thornton without sufficient legal authority.

P.G. 212-11, Page 1, Paragraph 1 - STOP AND FRISK

2. Said Sergeant Richard Johnson, assigned to Narcotics Borough Bronx, while on duty on or about February 29, 2012, at approximately 1325 hours, in the vicinity of Bedford Park Boulevard and Valentine Avenue, in Bronx County, abused his authority as a member of the New York City Police Department in that he frisked Emille Thornton without sufficient legal authority.

P.G. 212-11, Page 1, Paragraph 2 - STOP AND FRISK

The Civilian Complaint Review Board (CCRB) was represented by Paul Scotti, Esq., Respondent was represented by John D'Alessandro, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty.

SUMMARY OF EVIDENCE PRESENTEDIntroduction

It is not disputed that on February 29, 2012, Respondent was on duty, assigned to Narcotics Borough Bronx supervising a plain clothes narcotics enforcement team (the team) which consisted of himself, Detective Rosa Gonzalez-Noa and Police Officer Paul Ortiz. At about 1325 hours, the team was inside an unmarked van traveling southbound on Valentine Avenue in the vicinity of Bedford Park Boulevard, the Bronx, within the confines of the 52 Precinct. Respondent was seated in the front passenger seat of the van. He observed a man, whose name he later ascertained was Emille Thornton, walking southbound on Valentine Avenue. Respondent decided to stop Thornton. Respondent directed Ortiz, who was driving the van, to stop the van. Respondent, Gonzalez-Noa and Ortiz got out of the van and approached Thornton.

Civilian Complaint Review Board's Case

The Administrative Prosecutor called Emille Thornton as his sole witness.

Emille Thornton

Thornton, who is 27-years-old and resides in [REDACTED], recalled that on February 29, 2012 he was walking by himself on Valentine Avenue toward Bedford Park Boulevard on his way to an appointment at his doctor's office. He was wearing a black

North Face winter coat, a blue hooded sweatshirt, red sweatpants and a Spiderman baseball cap. His coat had three sets of pockets, one pair located near the chest, one pair on the sides near the bottom of the coat, and one pair in the front bottom area of the coat.

Thornton recalled that he had a cell phone in the rear pocket of his sweatpants which was four inches long and two inches wide. He also had an MP3 player with headphones in his upper left coat pocket. He also had an ID card, an insurance card, and a ChapStick in his left sweatpants pocket. As he was walking, his hands were inside the upper side pockets of his coat which are near his rib area.

Thornton saw three plain clothes police officers exit an unmarked van and approach him. The officers asked what his name was, what his address was and where he was coming from. He told them his name, his address, and that he was on his way to a doctor's appointment. He was asked if he had drugs, weapons, or anything illegal on him. He responded, "No." He was then told to put his hands against a nearby wall. He complied. An officer unzipped Thornton's coat and held Thornton's left hand against the wall as he placed his right hand on Thornton's back. All three officers patted the outside of his clothing. One officer patted him starting at his left ankle, working his way up Thornton's waist, and then coming back down his right leg. The officers searched his sweatpants pockets. They knocked his ChapStick and his [REDACTED] card out of his pockets. He testified that he kept his hands against the wall while he was being frisked.

Thornton identified a photograph as being the intersection of Valentine Avenue and Bedford Park Boulevard where his interaction with the officers took place. Thornton indicated the exact location where he was stopped by writing an "S" on the photograph.

He indicated the location of the unmarked van by writing a "P" on the photograph.

[Civilian Complaint Review Board's Exhibit 1]

On cross-examination, Thornton agreed that there is a fair amount of crime in his neighborhood. There are gang members, gang-related shootings, and a significant number of robberies. He confirmed that he is mindful of his surroundings and looks around him when he is walking through the neighborhood to ensure that no one is following him. Thornton recalled he was wearing a black jacket and red pants that day, that his hands were in his jacket pockets above his waist in his rib area as he was walking, and that he had been looking around as he walked to make sure he was safe.

Respondent's Case

Respondent testified in his own behalf.

Respondent

Respondent, a 16-year member of the service, recalled that he was assigned to the Narcotics Division in the 52 Precinct after he was promoted to the rank of sergeant. He testified that the 52 Precinct is a high crime area plagued by gang violence and narcotics activity. He stated that the narcotics trade within the 52 Precinct is controlled by gangs in the area. Gang members are known to wear certain colors to signify their membership. The primary gang in the 52 Precinct is the "Bloods" whose colors are red and black.

When he first spotted Thornton walking on Valentine Avenue toward Bedford Park Boulevard, he noticed that Thornton was looking around nervously and that Thornton's hands were inside his upper coat pockets near his chest. Thornton's hands

were “cupped” in a way that it appeared that there was a bulge under his coat.

Respondent thought Thornton might have been “cradling a weapon.”

Respondent decided to stop Thornton because he was wearing red sweatpants in an area that has a fair amount of Blood gang presence; because of the way that he was holding his hands; and because of his demeanor. Respondent cited his Department training and his field experience as factors that entered into his decision to stop Thornton. Respondent testified that he has viewed training videos of shootings depicting the actions shooters engage in prior to withdrawing a firearm and showing how weapons are concealed. He stated that if there are indicators that a person is carrying a firearm it is incumbent upon the police to stop that person. After he stopped Thornton, he frisked Thornton to ascertain whether he was carrying a weapon.

On cross-examination, Respondent agreed that he did not see Thornton looking into any parked cars or “casing” any locations. Respondent confirmed that after observing Thornton for ten to 20 seconds, he decided to stop Thornton. He stated that his suspicion was elevated because Thornton was wearing red pants and based on his experience that could have indicated an affiliation with the Bloods gang. Respondent agreed that a police officer should never stop someone just because they are wearing red pants. Respondent agreed that other than the red pants, he saw nothing else to indicate that Thornton had an affiliation with the Bloods gang.

Respondent reiterated that Thornton had his arm “cradled” in a manner that indicated he may have been carrying a weapon. Respondent stated that “there was no general outline or anything that gave me any indicators about a specific type of weapon.”

Respondent was asked if it was just speculation on his part that Thornton might be carrying a gun. Respondent answered, "Speculation is not the word I would use on it. I would say it's precaution, but when I observed all the combined factors, I would say it was the way it was being cradled that's the most dangerous thing that I can encounter, so that's what I was prepared for, yes." Respondent agreed that he did not see the outline of a gun, the handle of a gun, or any visible characteristics that would have led him to believe that what Thornton had in his jacket was a gun.

Respondent confirmed that the purpose of the stop was to check Thornton to see if what Respondent thought might be a weapon was actually a weapon. Respondent acknowledged that when he got out of the van, he approached Thornton to stop him and to frisk him. Respondent agreed that when Thornton removed his hands from his pockets, at that point Respondent could not really tell whether there was a bulge there. Respondent testified that he frisked Thornton's jacket pockets and the "arm that was in the pocket" and that he patted down the entire front of Thornton's jacket. No weapon was recovered on Thornton.

On re-direct, Respondent testified that the value of viewing the training films is that they show the "characteristics and the behaviors people display prior to committing crimes" so that members of the service can better identify such characteristics and the behaviors and thereby stop crimes from happening.

On re-cross examination, Respondent stated that prior to stopping someone he does not need to "know" a crime is going to occur, he only needs to "have a suspicion that it may" occur.

FINDINGS AND ANALYSIS

It is charged that Respondent abused his authority by stopping and frisking Thornton without sufficient legal authority.

Patrol Guide Procedure 212-11 "Stop and Frisk," states that "when a uniformed member of the service reasonably suspects a person has committed, is committing or is about to commit a felony or a Penal Law misdemeanor," the uniformed member of the service may lawfully "stop person and request identification and explanation of conduct."¹ This Patrol Guide Procedure also states that a uniformed member of the service may lawfully "frisk" a person "if you reasonably suspect you or others are in danger of physical injury."²

On questioning by his attorney, Respondent asserted that he had stopped Thornton based on his experience and training and based on his personal observations of Thornton while Respondent was still inside the van. Respondent cited the following factors: That the area where Thornton was walking was plagued by gun crime including gang-related shootings; that Thornton was wearing a black jacket and red pants that day which is the colors of the Bloods gang; that Thornton's hands, which were inside his upper coat pockets near his chest, were "cupped" in such a way that it appeared that there was a bulge under his coat which led Respondent to suspect that Thornton might be "cradling a weapon;" and that Thornton was looking around as he walked which Respondent interpreted as possibly being the furtive actions of a man who was about to engage in or had just engaged in criminal activity.

¹ Patrol Guide Procedure No. 212-11(1).

² Patrol Guide Procedure No. 212-11(2).

Respondent's attorney argued that the factors Respondent cited provided him with a sufficient basis on which to lawfully stop Thornton and request him to produce identification and an explanation of his conduct. However, this argument by Respondent's attorney was undermined by the admissions that Respondent made on cross-examination. Regarding the bulge under Thornton's coat, Respondent admitted that he saw "no general outline or anything that gave me any indicators about a specific type of weapon." Most significantly, Respondent admitted that the purpose of the stop was to check Thornton to see if he was carrying a weapon and that the reason that he stopped Thornton was so that he could frisk him. As a result of Respondent's admission that the only crime he even suspected Thornton of committing was possession of a weapon and since Respondent possessed insufficient information to reasonably suspect that Thornton was carrying a weapon, Respondent had an insufficient basis to reasonably suspect that Thornton was committing a felony or a Penal Law misdemeanor. Thus, I find that Respondent's stop of Thornton was improper.

As to Respondent's frisk of Thornton, I credit Thornton's testimony that before he was frisked he answered the questions the officers posed to him and that he did not do anything that would lead Respondent to reasonably suspect that Thornton posed any danger. The New York Court of Appeals has held that where a person who has been stopped by police officers is cooperative and non-threatening to the officers, a frisk of the person is unwarranted.³ Most significantly, as noted above, Respondent admitted that when he exited the van to approach Thornton his intent was to frisk him even though Respondent had not observed "anything that gave me any indicators about a specific type

³ See People v. St. Clair, 54 NY2d 900, 444 NYS2d 919 (1981).

of weapon.” Moreover, Respondent admitted that after Thornton removed his hands from his pockets, he could not really tell whether there was a bulge where Thornton’s hands had been. Despite this fact, Respondent admitted that he patted down the entire front of Thornton’s jacket and that he frisked his jacket pockets and an arm that had been inside a pocket.

Since the record establishes that at the point in time when Respondent began to frisk Thornton he possessed no objective evidence that Thornton posed a threat to anyone, I find that Respondent had no basis to reasonably suspect that he or others were in danger of physical injury. Therefore, I find that Respondent abused his authority by frisking Thornton.

Based on the above, Respondent is found Guilty.

PENALTY

In order to determine an appropriate penalty, Respondent’s service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974).

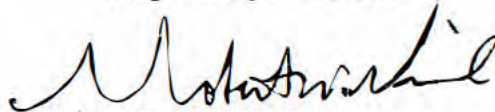
Respondent was appointed to the Department on July 1, 1998. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has been found Guilty of abusing his authority by stopping and frisking Thornton without sufficient legal authority. The Administrative Prosecutor recommended that Respondent forfeit ten vacation days as a penalty.

In determining a penalty recommendation I have taken into consideration that Respondent is 16-year member who has no prior formal disciplinary record and consistently excellent performance evaluations.

It is recommended that Respondent receive a reprimand as his penalty in this case.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner Trials

APPROVED

DEC 11 2009

WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials

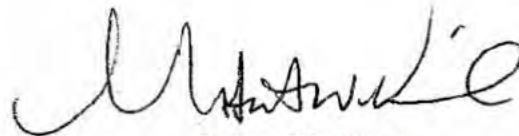
To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
SERGEANT RICHARD JOHNSON
TAX REGISTRY NO. 921444
DISCIPLINARY CASE NO. 2013-9947

The Respondent received an overall rating of 4.5 on his 2013 performance evaluation, 4.5 on his 2012 evaluation, and 4.5 on his 2010 evaluation. He has been awarded two Meritorious Police Duty medals and four Excellent Police Duty medals.

[REDACTED] He has no prior formal disciplinary record but he has monitoring records.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner – Trials